

**DEPARTMENT
POLICY****Medicaid (MA) ONLY**

This is an SSI-related Group 1 MA category.

MA is available to a child who meets the criteria for admission to a state psychiatric hospital and/or who are at risk of hospitalization without waiver services.

The child must be under age 18 when approved for the waiver, unmarried, a current patient in a psychiatric hospital or at risk of such placement; must demonstrate serious functional limitations that impair ability to function in the community; and must have a completed MichiCANS Comprehensive that indicates SED waiver eligibility and meets Medicaid Provider manual eligibility criteria as determined by the local Community Mental Health Services Program (CMHSP). If a child on the SEDW turns 18, continues to meet all non-age-related eligibility criteria (see below in this item), and continues to need waiver services, the child can remain on the waiver up to their 21st birthday.

The income and assets of the child's parents are not considered when determining the child's eligibility.

The Bureau of Children's Coordinated Health Policy and Supports (BCCHPS) and local MDHHS office share responsibility for determining eligibility for the SED Waiver. BCCHPS, in cooperation with the local CMHSP, has responsibility for determining non-financial eligibility factors for the SED Waiver. Financial eligibility is determined by MDHHS.

All eligibility factors must be met in the calendar month being tested.

**NONFINANCIAL
ELIGIBILITY
FACTORS****BHDDA
Responsibilities**

BCCHPS determines that clinical eligibility exists. That is:

- The child meets the criteria for admission to a state inpatient psychiatric hospital; and

- It is appropriate to provide such care for the child in the community; and
- The average estimated cost to Medicaid of caring for the child in the community does not exceed the average estimated cost to Medicaid for the child's care in the state psychiatric hospital.

Mental Health Services to Children and Families within BCCHPS is responsible for the following at application and medical review:

- Obtaining and reviewing clinical evidence of the child's serious emotional disturbance and functional limitations from the local CMHSP, and
- Certifying disability on the DHS-49-A, Medical-Social Eligibility Certification.

The Behavioral and Physical Health and Aging Services Administration (BPHASA) certifies on the MSA-1785, Policy Decision, that the requirements in **BCCHPS Responsibilities** in this item are met.

If the child is not receiving MA, BPHASA will send the family:

- A copy of the MSA-1785, and
- A DCH- 1426, Assistance Application, with the address of the local office to mail the completed application.

Communication to the Local Office

BPHASA will send the MSA-1785 and the DHS-49-A to the local MDHHS and CMHSP offices whether or not a child is an MA recipient. BPHASA will send a letter of termination when a child is no longer eligible for this category. Pursue eligibility for other MA categories when a child is no longer eligible for the waiver.

Local Office Responsibilities

Do not authorize MA under this category without a MSA-1785 and DHS-49-A authorizing MA in this category. Use this category when the child is not an SSI or FIP recipient. Use this category before using a Group 2 category.

Treat the receipt of the MSA-1785 as a request for assistance if it is received for a child who is not an MA applicant or recipient.

Determine if the child meets the MA eligibility factors in the following items:

- BEM 220, Residence.
- BEM 223, Social Security Numbers.
- BEM 225, Citizenship/Alien Status.
- BEM 257, Third Party Resource Liability.
- BEM 260, MA Disability/Blindness.
- BEM 270, Pursuit of Benefits.

Note: The **State Hospital Administration (SHA)** is responsible for obtaining clinical evidence and for certifying disability on the DHS-49-A; **see BCCHPS Responsibilities in this item.**

If a child on the SEDW turns 18 and continues to meet all the non-age related eligibility criteria, and continues to need waiver services, the child can remain on the waiver up to their 21st birthday.

Note: An ex parte review (see glossary) is required before Medicaid closures when there is an actual or anticipated change, unless the change would result in closure due to ineligibility for all Medicaid. When possible, an ex parte review should begin at least 90 days before the anticipated change is expected to result in case closure. The review includes consideration of all MA categories; see BAM 115 and 220.

INQUIRIES

Inquiries from medical providers or parents concerning clinical eligibility under this category should be directed to the local CMHSP.

FINANCIAL ELIGIBILITY FACTORS

Financial eligibility is determined by the local office. **Count only the child's own income and assets.** Do not deem income and assets from the child's parents to the child.

Groups

The child is a fiscal and asset group of one.

Assets

The child's countable assets cannot exceed the asset limit in BEM 400. Countable assets are determined based on MA policies in BEM 400 and 401.

Divestment

Do not apply policy in BEM 405.

Income Eligibility

Income eligibility exists when the child's gross income is equal to or less than 300 percent of the federal SSI benefit rate, see RFT 248.

Gross income is the amount determined after applying MA policies in BEM 500 and 530. Do not apply the deductions in BEM 540 and 541.

**VERIFICATION
REQUIREMENTS**

Verification requirements for all eligibility factors are in the appropriate manual items.

LEGAL BASE**MA**

Social Security Act, Section 1915 (c)